

Calendar Line 16

Case Name: *Jeff Taylor v. Ford Motor Company*

Case Number: 21CV390568

“It is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ (*Guidery v. Green*, 95 Cal. 630, 633; *Marr v. Rhodes*, 131 Cal. 267, 270.) If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (*Nelson v. Superior Court*, 97 Cal.App.2d 78; *Estate of Herbst*, 26 Cal.App.2d 249; *Norton v. Bassett*, 158 Cal. 425, 427.)” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal. App. 2d 527, 530-531 (error for trial court to fail to give leave to amend)).

Defendant argues Plaintiff’s Request for Leave to Amend the Complaint should be denied for failing to comply with the California Rules of Court Rule 3.1324. Also, if the party seeking amendment has been dilatory and the delay will prejudice the opposing party, the court has discretion to deny leave to amend. (*Hirsa v. Sup. Ct.* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, result in loss of critical evidence or increased preparation costs, or increase discovery burdens. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

While it is true Plaintiff’s only explanation for seeking amendment, and failure to amend earlier, is the “changed the landscape for actions brought under the Song-Beverly Consumer Warranty Act” brought about by *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 (*Rodriguez*), the Court in this matter seems to have accommodated the parties until November 2024 based on an openly and jointly stated perspective that trial setting would best wait until the California Supreme Court decided *Rodriguez*. Once that happened, the Court scheduled a trial setting conference three months later noting, “An Amended Complaint is being prepared.” (Minutes, 11/14/24.) There was certainly no surprise in Plaintiff’s waiting to file and then filing the amended complaint. It also appears the most significant force driving the case toward a trial date was the Court itself.

Trial in this matter is set for November 10, 2025. The Court does not believe permitting this amendment five months prior to trial would prejudice Defendant. Defendant will still have the ability to attack the pleadings or move for summary judgment. Defendant seems already well positioned to make such attacks given the arguments it makes in opposition to the motion here. Defendant argues that permitting amendment would “significantly alter Ford’s defense, and hinder its ability to adequately defend itself resulting in prejudice and delay at this late stage of the litigation.” However, Defendant offers no support for this claim. The Court, to the contrary, suspects the need for a trial continuance is unlikely.

As for Defendant’s attacks on the proposed amended pleading, “leave to amend may be denied where permitting an amendment would be futile (*Long v. Century Indemnity Co.* (2008) 163 Cal.App.4th 1460, 1468), e.g., where the amendment does not state a cause of action. (See *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230; *Heckendorn v. City of*

San Marino (1986) 42 Cal.3d 481, 489 [leave to amend should be denied where no liability exists under substantive law].” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828.) However, the preferred practice is to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings, or other appropriate proceedings. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Plaintiff’s Motion for Leave to File a First Amended Complaint is accordingly GRANTED.

Plaintiff to prepare the final order and to serve and file the First Amended Complaint within 5 days of the date of the hearing.

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